



SUMMARY REPORT

Agenda Date: 6/11/2019

To: Board of Supervisors

Department or Agency Name(s): Sheriff's Office

Staff Name and Phone Number: Connie Newton, 8884

Vote Requirement: Majority

Supervisory District(s): All

Title:

Body Worn Camera Contract 2nd Amendment

Recommended Actions:

Authorize the Sheriff to amend the existing Body Worn Camera Services Agreement with Axon Enterprise, Inc. to purchase additional licenses for a total not-to-exceed contract cost of \$3,593,000 for the term December 9, 2014 through March 10, 2024. This contract benefits the public by providing deputies with essential law enforcement and detention equipment and by promoting transparency.

Executive Summary:

This item requests the Board authorize the Sheriff to execute a Second Amendment ("Amendment") with its current body worn camera provider, Axon Enterprise, Inc., ("Axon") to purchase additional licenses for users that need access to videos, but do not use a camera. In March 2019, the Board approved the First Amendment to the Body Worn Camera Services Agreement to procure new cameras for the Detention Division, related hardware and software, ongoing support, data storage, and periodic upgrades to the technology. Upon implementation of the Detention Body Worn Camera Program, Sheriff's staff realized additional licenses are needed to allow support staff to access body worn camera videos in order to perform essential functions required to maintain a Body Worn Camera Program.

Discussion:

Body worn cameras and audio visual recordings of law enforcement and detention interactions provide increased transparency and accountability for law enforcement and the public. Video and audio recordings can provide an objective record of events and provide documentary evidence for criminal investigations, internal or administrative investigations, and civil matters. The use of body worn cameras is intended to enhance the mission of the Sheriff's Office by accurately capturing contacts between members of the Sheriff's Office and the public. Body worn cameras have proven to help expedite the resolution of citizen complaints, assist prosecutors, and reduce staff overtime. Arguably one of the most significant benefits of using body worn camera technology is the role it plays in offering insights into critical incidents, for example, as a tool for validating the sequence of events.

In March 2019, the Board approved the First Amendment to the Agreement to procure new cameras to extend the Sheriff's Body Worn Camera Program the Detention Division, including related hardware and software, ongoing support, data storage, and periodic upgrades to the technology. Prior to body worn cameras being issued to all sworn staff, there was a supply of spare licenses available for support staff to use. Upon implementation of the Detention Body Worn Camera Program, Sheriff's staff realized additional licenses are needed to allow support staff to access body worn camera videos. There are several support staff at the Sheriff's Office who require licenses to either provide technical support,

provide access to videos for discovery, and/or assist in other related tasks, most of which are mandated. These support staff users are not issued a camera, but do require an individual account to access the system. These unique accounts are essential to comply with the vendor's terms of use, to ensure proper audit reports can be produced, and to complete support tasks.

To address the workload described above, the Sheriff's Office requires 20 additional licenses, which will cost \$9,360 per year. These additional licenses increase the anticipated total cost for the products and services provided by Axon under the total Agreement to \$3,570,000. Additionally, the Sheriff is requesting the authority to add up to 10 more licenses for an additional cost of \$4,680 per year if the need arises. If the Sheriff ultimately adds 30 licenses the annual cost is \$14,040 per year. In July 2019 legislative changes will increase the public's access to these videos, which in turn may require additional support staff to respond to the increased workload. Therefore, the Sheriff is requesting the authority to add 30 additional licenses for a not to exceed contract limit of \$3,593,000 over the entire term of the amended Agreement.

Funding for the body worn cameras is included in the Sheriff's FY 18-19 Adopted Budget and FY 19-20 Recommended Budget. The FY 18-19 expense for the 20 additional licenses (\$740) will be absorbed in the Sheriff's budget. Due to the urgent and unforeseen need of these additional licenses, the Sheriff has agreed to use asset forfeiture funds in FY 19-20 and FY 20-21 to pay for the licenses, in the event costs cannot be covered with savings in other areas of the Sheriff's budget. The one-time commitment of asset forfeiture funds will bridge the gap until the request for proposal process is complete and a new agreement is established. As stated in the March 12, 2019 Board Item, the Sheriff will be issuing a request for proposal within the next one to two years potentially resulting in a new agreement. The Sheriff will return to the Board with the new Agreement and request continued General Fund funding for the entire body worn camera program. The Sheriff is in the process of evaluating data storage needs, retention policies, new legislative requirements, and support staff roles in body worn camera video reproduction to develop the requirements for the request for proposal. In the interim, 20 to 30 licenses will allow Sheriff's staff to keep up with the existing, mandated, workload created by the body worn camera program.

Prior Board Actions:

March 12, 2019 - Board authorized First Amendment to the Body Worn Camera Agreement.

December 9, 2014 - Board approved the Sheriff's Body Worn Camera Agreement and implementation.

FISCAL SUMMARY

Expenditures	FY 18-19 Adopted	FY19-20 Projected	FY 20-21 Projected
Budgeted Expenses	740	14,040	14,040
Additional Appropriation Requested			
Total Expenditures	740	14,040	14,040
Funding Sources			
General Fund/WA GF	740		
State/Federal			
Fees/Other		14,040	14,040
Use of Fund Balance			
Contingencies			

Total Sources	740	14,040	14,040
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Narrative Explanation of Fiscal Impacts:

The FY 18-19 expense for the 20 additional licenses (\$740) will be absorbed in the Sheriff's budget. Due to the urgent and unforeseen need of these additional licenses, the Sheriff has agreed to use asset forfeiture funds in FY 19-20 and FY 20-21 to pay for the licenses, in the event costs cannot be covered with savings in other areas of the Sheriff's budget. The one-time commitment of asset forfeiture funds will bridge the gap until the request for proposal process is complete and a new contract is established. The budgetary appropriations needed in FY 19-20 to increase the contract limit and draw down asset forfeiture funds will be added as part of 1st Quarter Consolidated Budget Adjustments.

Staffing Impacts:			
Position Title (Payroll)	Monthly Salary Range (A - I Step)	Additions (number)	Deletions (number)

Narrative Explanation of Staffing Impacts (If Required):

N/A

Attachments:

2nd Amendment for Body Worn Camera Services

Related Items "On File" with the Clerk of the Board:

First Amendment and Original Agreement with Taser (now Axon) for body Worn Camera Services